

The Mahua Flower Grading and Marking Rules, 2008

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The Mahua Flower Grading and Marking Rules, 2008

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The Mahua Flower Grading and Marking Rules, 2008

Rule THE-MAHUA-FLOWER-GRADING-AND-MARKING-RULES-2008 of 2008

Published on 21 August 2008

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The Mahua Flower Grading and Marking Rules, 2008

Published vide Notification No. G.S.R. 615(E), dated 21st August, 2008

Ministry of Agriculture

(Department of Agriculture and Co-operation)

G.S.R. 615(E). - Whereas the draft of Mahua Flower Grading and Marking Rules, 2007, were published in the Gazette of India, Part II, Section 3, Sub-section (i) vide number G.S.R. 285 dated the 22nd December, 2007, inviting objections and suggestions from all persons likely to be affected thereby within forty-five days from the date on which the copies of the said notification published in the Gazette of India were made available to the public ;

And whereas copies of the said notification were made available to the public on the 17th February, 2008 and whereas the objections and suggestions received from the public in respect of the said draft rules have been duly considered;

Now, therefore, in exercise of the powers conferred by section 3 of the Agricultural Produce (Grading and Marking) Act,

1937, (1 of 1937), the Central Government hereby makes the following rules, namely :-

Rules

1.

Short title, application and commencement.

(1)

These rules may be called the Mahua Flower Grading and Marking Rules, 2008.

(2)

They shall apply to mahua flower obtained from varieties *Madhuca latifolia* and *Madhuca longifolia*.

(3)

They shall come into force on the date of their final publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires, -

(a)

"Agricultural Marketing Adviser" means the Agricultural Marketing Adviser to the Government of India as defined in clause (e) of rule 2 of the General Grading and Marking Rules, 1988;

(b)

"Authorised Packer" shall have the meaning as assigned to it in clause (f) of rule 2 of the General Grading and Marking Rules, 1988;

(c)

"Certificate of Authorisation" shall have the meaning as assigned to it in clause (k) of rule 2 of the General Grading and Marking Rules, 1988; and

(d)

"Schedule" means the Schedules appended to these rules.

3.

Grade designation mark.

- The grade designation mark shall consist of "Agmark Insignia" consisting of a design incorporating the number of the Certificate of Authorisation, the word "Agmark", name of the commodity and grade designation resembling the one as set out in Schedule-I.

4.

Grade designation.

- The grade designation to indicate the quality of the mahua flower shall be as set out in column (1) of the Table to Schedule-II.

5.

Quality.

- The quality of mahua flower shall be as set out against each grade designation in columns 2 to 8 of the Table to Schedule-II.

6.

Method of packing.

(1)

Mahua flower shall be packed only in sound, clean and dry containers made of jute, cloth bags, laminated polyethylene or poly propylene or high density polyethylene bags, pouches, cartons or any other packaging material duly approved by the Agricultural Marketing Adviser or any officer authorised by him in this behalf.

(2)

The container shall be free from any insect infestation or fungus contamination and also free from any undesirable or obnoxious smell.

(3)

Mahua flower shall be packed in such a way as to protect the produce properly and the container shall be securely closed and sealed in a manner approved by the Agricultural Marketing Adviser or an officer authorised by him in this behalf.

(4)

The use of materials particularly of paper or stamps bearing trade specifications is permitted;
Provided that the printing or labeling has been done with non toxic ink or glue.

(5)

Each package shall contain mahua flower Of one grade designation only.

(6)

Suitable number of small packets of mahua flower containing graded material of the same lot or batch and grade designation may be packed in a master container such as jute bags, wooden cases, cardboard cartons, etc., with details on master containers.

(7)

Mahua flower shall be packed in the pack sizes as per instructions of the Agricultural Marketing Adviser issued from time to time.

7.

Method of marking and labeling.

(1)

The grade designation mark shall be securely affixed to or clearly and indelibly printed on each container in a manner approved by the Agricultural Marketing Adviser to the Government of India.

(2)

In addition to the grade designation mark, the following particulars shall be clearly and indelibly marked on each package, namely:-

(a)

name of the commodity;

(b)

variety;

(c)

grade designation;

(d)

name and address of the packer;

(f)

net weight;

(g)

storage conditions, if any;

(h)

country of origin;

(i)

date of packing;

(j)

best before date, month and year;

(k)

lot or batch number;

(l)

maximum retail price; and

(m)

any other particulars as may be specified by the Agricultural Marketing Adviser.

Note.- The date of packing shall be the date of completion of the analysis of the sample.

8.

Mahua flower may be graded and marked as per buyer's requirements for export provided minimum requirements specified in the relevant Schedule-II are met.

9.

Special conditions for grant of Certificate of Authorisation.

(1)

In addition to the conditions specified in sub-rule (8) of rule 3 of the General Grading and Marking Rules, 1988 every

Authorised Packer shall follow all instructions issued by the Agricultural Marketing Adviser from time to time.

(2)

The Authorised Packer shall either set up his own laboratory or has access to the State Grading laboratory or Private Commercial Laboratory approved for the purpose and manned by a qualified chemist approved by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance which rule 9 of the General Grading and Marking Rules 1988 for testing the quality of mahua flower.

(3)

The premises for processing, grading and packing shall be maintained in perfect hygienic and sanitary conditions.

(4)

The personnel engaged in these operations shall be in sound health and free from any infectious, contagious or communicable diseases.

(5)

The premises shall have adequate storage facilities with pucca floor and free from rodent and insect infestation.

I

(see rule - 3)

Design of the Agmark Insignia

Name of the Commodity

Grade

II

(see rules 4 and 5)

Grade designation and quality of mahua flower

1. Mahua flower means dried corolla of Mahua flower obtained from varieties of Madhuca latifolia and Madhuca longifolia;

2. Minimum requirements. - (i) Mahua flower shall have the size, shape and colour characteristics of the commodity.

(ii)

It shall be,-

(a)

dried, sound and clean;

(b)

free of any visible foreign matter;

(c)

free from insect infestations, live insect, dead insects, mould growth, larvae and added colouring matter, rodent hair and excreta, etc.;

(d)

free from fermentation, rancid taste and musty odours;

(e)

free from dirt, extraneous matter and other adulterants;

(f)

free from any fungal or bacterial contamination; and

(g)

free from any external moisture.

(iii)

The taste and smell of mahua flower shall be associated with the produce.

(iv)

Mahua flower shall comply with the residue levels of heavy metals, pesticides and other food safety parameters as laid down by the Codex Alimentarius Commission for exports.

(v)

It shall comply with the restrictions in regard to metallic contaminants, naturally occurring toxic substances, insecticide and pesticides as specified in rules 57, 57B and 65 of the Prevention of Food Adulteration Rules, 1955 respectively and other provisions of the said rules.

3. Criteria for grade designation

Table

Grade designation

Special characteristics

Organic extraneous matter per cent by mass on dry basis

Inorganic extraneous matter per cent by mass on dry basis

Moisture content per cent by mass

Total ash per cent by mass on dry basis

Acid insoluble ash per cent by mass on dry basis

Crude fibre per cent by mass on dry basis

Total reducing sugar plus sucrose per cent.

Maximum

Maximum

Maximum

Maximum

Maximum

Maximum

Minimum

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

Special

0.8

0.3

12.0

3.0

0.5

3.0

60

Standard

1.0

0.5

14.0

4.0

1.0

4.0

50

General

1.5

0.8

16.0

5.0

1.5

5.0

40

4. Other requirements. - The condition of the mahua flower shall be such as to enable them-

(a)

to withstand transport and handling; and

(b)

to arrive in satisfactory condition at the place of destination

Explanation 1. - For the purposes of these rules, "organic extraneous matter" means vegetable matter of plant other than the mahua flower.

Explanation 2. - For the purposes of these rules, "inorganic extraneous matter" means sand, stones, pebbles, lumps of earth, clay, mud etc.

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Translation